



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 25, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 7951
(FIFTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-refillable metal containers containing Division 2.2 hazardous materials, with a charge pressure not exceeding 150 psig at 75 °F when shipped in a refrigerated state. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered that hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(b)(1) in that non-DOT specification packaging is not authorized, except as specified herein; § 178.33c-2(a) in that side seams are permitted; and § 178.33c-2(c) in that marking is not required, except as specified herein.
5. BASIS: This special permit is based on the show cause letter issued by the Pipeline and Hazardous Materials Safety Administration dated May 16, 2024, in accordance with § 107.121.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Compressed gas, n.o.s.	2.2	UN1956	N/A

7. SAFETY CONTROL MEASURES: Prescribed packaging is a non-refillable metal container with side seams conforming to the requirements of a DOT Specification 2P1 except as follows:

- a. Each container is equipped with rim-venting release (RVR) device or dome expansion device designed to relieve at no less than 175 psig and not over 210 psig.
- b. One out of each case lot of 25,000 containers or fewer must be pressure tested to destruction. Failure at pressure below 175 psig and over 210 psig or failure occurring at other than the RVR device or dome expansion device must result in rejection of the lot. Otherwise, ten (10) additional containers from the lot may be selected and subjected to the test. Should any of the containers fail testing, the entire lot must be rejected. A case lot is defined as a lot of containers of the same size and design and built to the same specification by one manufacturer only.
- c. In lieu of the marking required by § 178.33c-2(c)(1), each container must be marked "DOT-SP 7951".
- d. The maximum charge pressure allowed at 75 °F is 150 psig. The containers must be shipped in a refrigerated state.
- e. For containers filled with high-speed rotary gasser/shakers, the rim-venting release device or dome expansion device must be designed to relieve at not less than 175 psig and not over 235 psig. The pressure test to destruction must be as described in paragraph 7.b. of this special permit, except that failure at a pressure over 235 psig must result in rejection of the lot.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

- c. Containers must be packed in strong non-bulk outer packagings conforming with § 173.301(a)(9). Each outside package must be legibly marked “THIS SIDE UP” or “THIS END UP”, as appropriate, to indicate the upward position of the inside packaging.
 - d. Filled containers authorized under this special permit may be transported as limited quantities in accordance with § 173.306(i).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo-aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a light blue circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWF/BMoore/NICKS